

Q [By Mr. DeMaria] Okay. Before we have you walk me through everything, can you tell me which ones those are and who was present?

A [By Plaintiff] Yes, I can. [¶] Once after school, during the spring of sophomore year, he [Mr. Wilkins] took me in his arms and started kissing me. *And no one else was in the classroom.* And the janitor opened the door and saw us, and he pushed me away.

The court finds CUSD fails to provide evidence to support the facts CUSD itself concedes are material to each cause of action asserted against it by Mr. Wilkins. Furthermore, CUSD fails to meet its initial burden of persuasion and production to prove that Mr. Wilkins cannot establish, as a matter of law, an essential element of each alleged cause of action, including whether CUSD is liable to Plaintiff for its own negligence. (See *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 879 ["a public school district may be vicariously liable under [Government Code] section 815.2 for the negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student"].) CUSD also fails to meet its initial burden to show Mr. Wilkins does not possess and cannot reasonably obtain needed evidence. Accordingly, the burden does not shift to Mr. Wilkins to raise a triable issue of material fact.

Therefore, the court denies CUSD's motion for summary judgment and its alternative motion for summary adjudication on the Cross-complaint. Furthermore, the court exercises its discretion and finds CUSD's failure to comply with the requirements for a separate statement constitutes an additional ground to deny CUSD's motion against Mr. Wilkins.

Evidentiary Objections

The court declines to rule on the parties' evidentiary objections because none are directed to evidence that is material to the disposition of CUSD's alternative motions against Plaintiff. (Code Civ. Proc., § 437c, subd. (q) [court need rule only on objections court deems material to its disposition].)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 5-26-26.
(Judge's initials)

(20)

Tentative Ruling

Re: ***Arredondo v. Saint Agnes Medical Center***
Superior Court Case No. 25CECG04529

Hearing Date: May 28, 2026 (Dept. 403)

Motion: Demurrer to First Amended Complaint

Tentative Ruling:

To overrule, without prejudice to the filing of a motion for judgment on the pleadings. (Code Civ. Proc., § 430.10, subd. (e), (f).)

Explanation:

Defendant Saint Agnes Medical Center ("SAMC") demurs to the First Amended Complaint ("FAC") filed by plaintiff Kathy Arredondo in this action on October 3, 2025. SAMC contends that FAC's claims are barred by claim and issue preclusion, as the same causes of action and issues were litigated in a prior action, *Arredondo v. Saint Agnes Medical Center*, Case No. 21CECG02006 (*Arredondo I*).

Claim preclusion bars a party from pursuing a subsequent action based on the same cause of action after a final judgment on the merits, while issue preclusion prevents relitigation of issues that were actually litigated and necessarily decided in a prior proceeding. (*City of Oakland v. Oakland Police & Fire Retirement System* (2014) 224 Cal.App.4th 210, 227.)

A demurrer must be overruled if the complaint states any valid claim entitling plaintiff to relief. If the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (*Quelimane Co., Inc. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39; *New Livable Calif. v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714-715; *Adelman v. Associated Int'l Ins. Co.* (2001) 90 Cal.App.4th 352, 359; see *Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998 [general demurrer may be upheld "only if the complaint fails to state a cause of action under any possible legal theory"].) A general demurrer does not lie to only part of a cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, disapproved on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 C5th 905, 948, fn. 12.)

The demurrer is overruled because the moving papers contain nearly no discussion of the substance of the FAC's allegations. SAMC's memorandum of points and authorities contends that "[t]he majority of the factual allegations in the FAC are duplicative of those alleged in *Arredondo I*, including allegations concerning Plaintiffs employment with SAMC, her disability, and the "Do Not Use" notation in her employment file. (RJN ¶ 6, Ex. F.)" It is true that the FAC includes substantial allegations duplicative of those in *Arredondo I*, but the FAC "expressly disclaims any intent to relitigate claims" and asserts that the "instant claims arise from post-judgment conduct not previously

litigated." (FAC ¶ 83.) SAMC's moving papers include no discussion whatsoever of the FAC's allegations of post-judgment conduct, and whether such is sufficient to state a cause of action under any theory. There is not one citation to allegations of the FAC. The moving papers seem to be an invitation for the court to do defense counsel's work and analysis for them. The court declines to do so. The court intends to overrule the demurrer in light of the lack of discussion or analysis of the sufficiency of the alleged post-judgment conduct. The court will not consider any such analysis provided for the first time in the reply brief, as to do so would deprive plaintiff the opportunity to respond. (See *Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228.) Since the court is not ruling on the merits of the demurrer, the court authorizes SAMC to file a non-statutory motion for judgment on the pleading raising these grounds.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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